IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 202
CP(CAA)-77/ND/2025

IN THE MATTER OF:
Alfa Flexitubes Private Limited ... Applicant

Under Section: 230-232 of Companies Act, 2013

Order delivered on 20.01.2026

CORAM:
SH. ASHOK KUMAR BHARDWAJ **MS. REENA SINHA PURI**
HON'BLE MEMBER (J) **HON'BLE MEMBER (T)**

PRESENT:
For the Applicant :
For the Respondent :
For IT Department : Adv. Sakshi Shairwal JSC, Adv. Vipul Agrawal SSC, Adv. Akshat Singh JSC

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

Mr. Vijay Singh Choudhary, Assistant Director represented the Regional Director and submitted that the Regional Director had raised certain observations regarding the demerger scheme, but on receiving of the explanation/reply from the Applicants, he has not further observation and objection to the approval of the scheme of demerger.

Mr. Kartik Asthana, Ld. Counsel for Official Liquidator submitted that since the present scheme does not involve amalgamation and is scheme of demerger only, the Official Liquidator has not objection thereto.

Nevertheless, Ld. Counsel for Income Tax Department submitted that one of the Applicants has outstanding liability to pay Income Tax Department Rs. 51,00,000/- and she need to file her report regarding the scheme of demerger. As prayed by her, 2 weeks' time is granted for filing the report. List on **10.03.2026.**

Before parting, we observed that the number assigned to a present petition is CP(CAA)-77/ND/2025 and same is the number assigned to another matter viz.

as one Identity Solutions Operating Company Pvt. Ltd. and IDEMIA Identity and Security India Pvt. Ltd. viz. Smart Chip Pvt. Ltd, viz. IPS Pvt. Ltd.

The Court Officer may verify the position and see that how same number could be assigned to two different cases.

Sd/-
(REENA SINHA PURI)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)